

1. Line 348 through 352:

348 ~~[(b)]~~(ii) release from confinement[-];
 349 (b) comply with Subsection (10); and
 350 (c) comply with the requirements described in Sections 17-72-301 and 53-29-308.
 351 (5) (a) Except as provided in Subsection ~~[(4)(b)]~~ ~~§~~→ (4)(a)(ii) } (5)(b) ←~~§~~, if an
 351a offender is sent on an
 352 assignment outside a secure facility, including being assigned for firefighting or

2. Line 353 through 358:

353 disaster control, the official who has physical custody of the offender shall, within a
 354 reasonable time after the day of the offender's removal from the secure facility, notify
 355 the local law enforcement agencies where the offender is assigned.
 356 (b) Subsection ~~[(4)(a)]~~ ~~§~~→ (4)(a)(i) } (5)(a) ←~~§~~ does not apply to an offender
 356a temporarily released from a
 357 secure facility setting who is under the supervision of a correctional facility official.
 358 (6) The division shall[-];

3. Line 519 through 525:

519 Section **53-29-305.** is amended to read:
 520 **53-29-305 (Effective 05/06/26)**Failing to register or providing false or
 521 incomplete information -- Failing to comply with monitoring program -- Penalties.
 522 (1) An offender who knowingly fails to register under this chapter[-or], ~~§~~→ knowingly ←~~§~~
 522a provides false or
 523 incomplete information, or ~~§~~→ knowingly ←~~§~~ fails to comply with the sex offender
 523a monitoring program
 524 described in Section 53-29-406, is guilty of:
 525 (a) a third degree felony and shall be sentenced to serve a term of incarceration of not

4. Line 543 through 550a:

543 **53-29-308 (Effective 05/06/26)**Local law enforcement agency responsibilities for
 544 sex offender registrant monitoring and arrest.
 545 (1) As used in this section:

546 ~~§→ [{ (a) "County of the first class" means a county that is classified by }~~
546a population as a county }] ←§
547 ~~§→ [{ of the first class under Section 17-60-104. }]~~
548 [{ (b) }] ~~(a)~~ ←§ "Law enforcement interlocal entity" means an interlocal entity under
548a Title 11,
549 Chapter 13, Interlocal Cooperation Act, that provides law enforcement services.
550 ~~§→ [{ (e) }] (b) ←§ "Law enforcement special district" means a district that provides~~
550a law enforcement

5. *Line 551 through 557:*

551 services under:
552 (i) Title 17B, Limited Purpose Local Government Entities - Special Districts; or
553 (ii) Title 17D, Chapter 1, Special Service District Act.
554 ~~§→ [{ (d) }] (c) ←§ "Monitoring program" means the same as the term "program" is~~
554a defined in Section
555 53-29-406.
556 ~~§→ [{ (e) }] (d) ←§ "Municipal law enforcement agency" means a law enforcement~~
556a agency that is
557 operated by:

6. *Line 558 through 563:*

558 (i) a municipality;
559 (ii) a law enforcement interlocal entity; or
560 (iii) a law enforcement special district.
561 ~~§→ [{ (f) }] (e) ←§ "Municipality" means the same as that term is defined in Section~~
561a 10-1-104.
562 (2) Except as provided in Subsection (3), a sheriff shall accept and begin monitoring
563 program oversight responsibility for a sex offender who is on the monitoring program if

7. *Line 568 through 576:*

568 the sex offender's change in jurisdiction as described in Subsection (7).
569 (3) (a) A municipal law enforcement agency shall accept and begin monitoring program
570 oversight responsibility as described in Subsection (3)(b) if the municipal law
571 enforcement agency §→ [{ : }]
572 [{ (i) **is located in a county of the first class; or** }]
573 [{ (ii) }] ←§ has accepted responsibility for the monitoring program for sex offenders in the

574 municipal law enforcement agency's jurisdiction under a written agreement with
575 the sheriff of the county in which the municipal law enforcement agency is
576 located.

8. *Line 710 through 715:*

710 (4) A sex offender is not required to pay the cost described in Subsection (3)(c) if the sex
711 offender demonstrates to the department that the sex offender does not have the ability
712 to pay.

713 (5) A sex offender required to be monitored under this section who §→ **knowingly** ←§ fails
713a to comply with the
714 program is guilty of a violation of Section 53-29-305.

715 (6) (a) The procedure described in Subsection (3)(g) shall require the department, upon